

Protecting Collective Bargaining and Strengthening Dispute Resolution



2026-2031

Collective Bargaining In a Changing Context

- **Upholding Binding Agreements**

- Respect for signed collective agreements is fundamental. Failure to implement agreements weakens trust, undermines labour relations, and destabilises the bargaining system.

- **Preserving Institutional Integrity**

- The PSCBC must remain the central, authoritative platform for negotiations that affect the entire public service, ensuring coordination across national and provincial departments.

- **Adapting to Fiscal Constraints**

- In times of budgetary pressure, negotiations must be transparent and evidence-based, balancing the State's financial position with employees' legitimate expectations.



Collective Bargaining In a Changing Context

- **Strengthening Social Dialogue**

- Continuous engagement between organised labour and the employer outside formal wage negotiations helps prevent conflict and promotes cooperative problem-solving.

- **Responding to Change**

- Digital transformation, remote work models, service restructuring, and policy reform require collective agreements that remain flexible while protecting workers' rights.



Trade Union Membership

- **Strength in Numbers**

The core principle of collective bargaining is collective power. The more workers who are union members:

- The stronger the union's mandate
- The greater its bargaining leverage
- The more credible its representation at the bargaining table

High membership levels ensure that agreements reflect the will of the majority rather than a small segment of employees.



Trade Union Membership

- **Legitimacy and Representation**

Trade unions derive their authority to negotiate from their members.
Membership:

- Provides unions with a clear mandate
- Strengthens democratic accountability
- Ensures negotiators represent real workplace concerns

Representative unions enhance the credibility of agreements reached at the PSCBC.



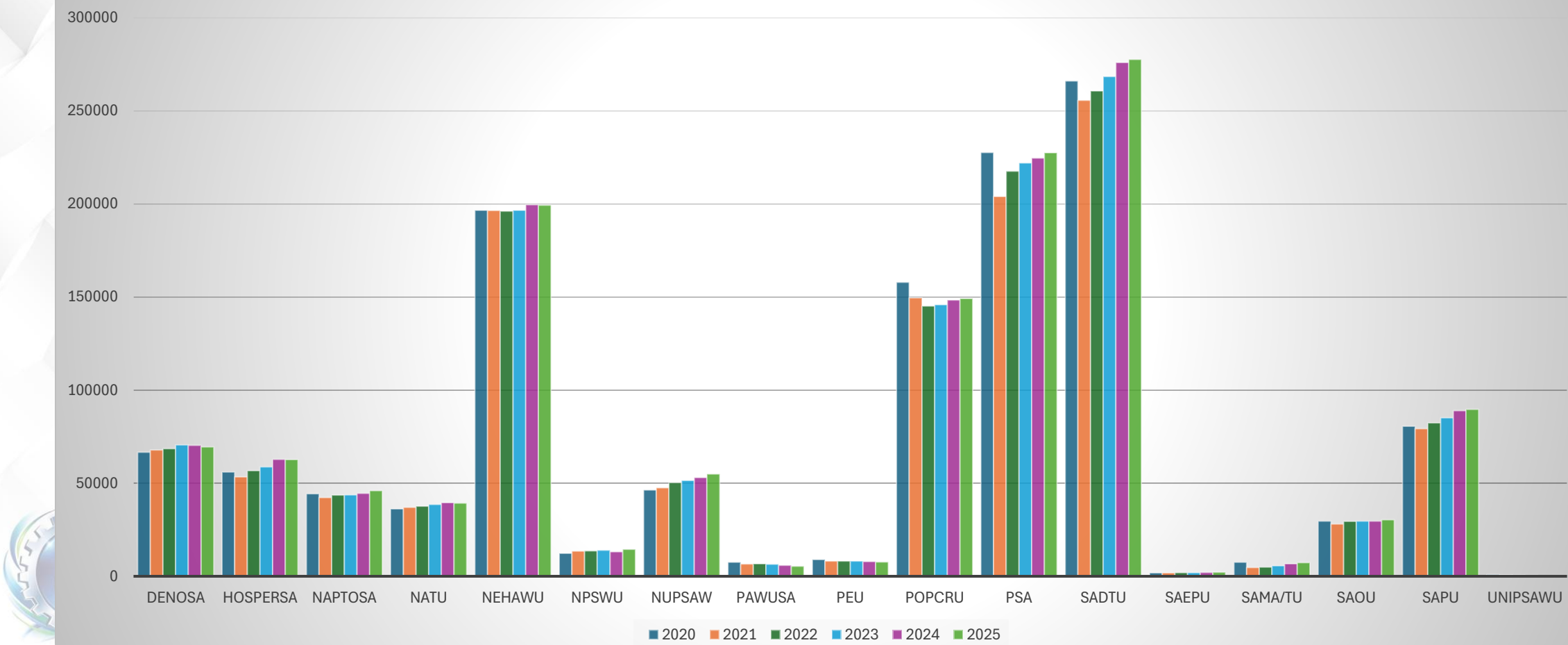
Trade Union Membership

- Trade union membership is the foundation of effective collective bargaining. Strong and representative unions reinforce the integrity of the bargaining system, strengthen the mandate of negotiators, and contribute to labour stability, democratic participation, and improved service delivery.



Trade Union Membership In Numbers

Audited Union Membership Figures (2020 - 2025)



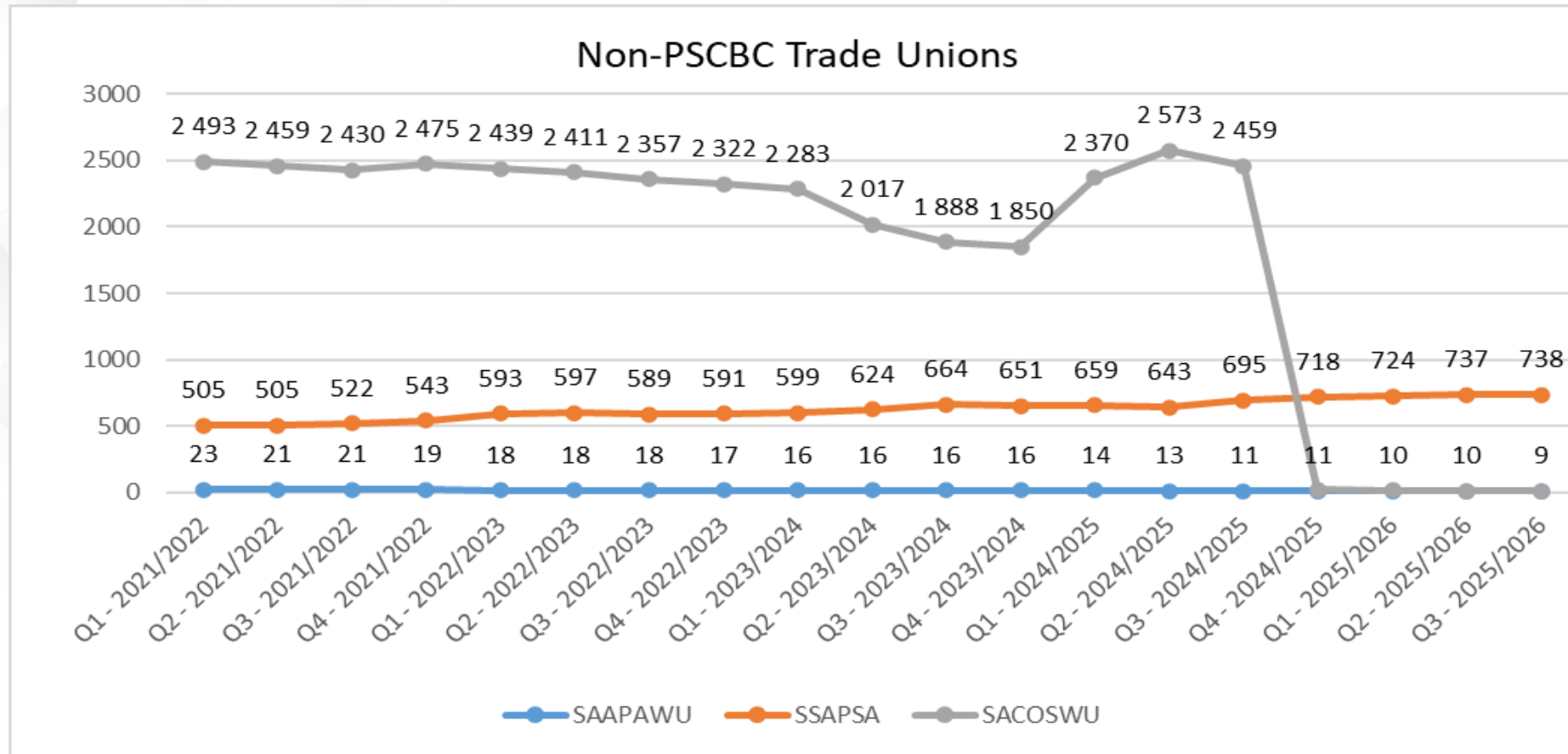
Trade Union Membership In Numbers

- The largest unions in the dataset, SADTU, PSA, NEHAWU, and POPCRU have generally maintained or expanded their membership bases
- SADTU's growth to over 280,000 members and PSA's stabilisation above 213,000 members reflect not only effective recruitment but also sustained relevance to their core constituencies.
- Mid-sized unions such as DENOSA, HOSPERSA, and SAPU have recorded meaningful gains, suggesting that well-positioned organizations with clear sectoral identities can thrive even in challenging environments.

Trade Union Membership In Numbers

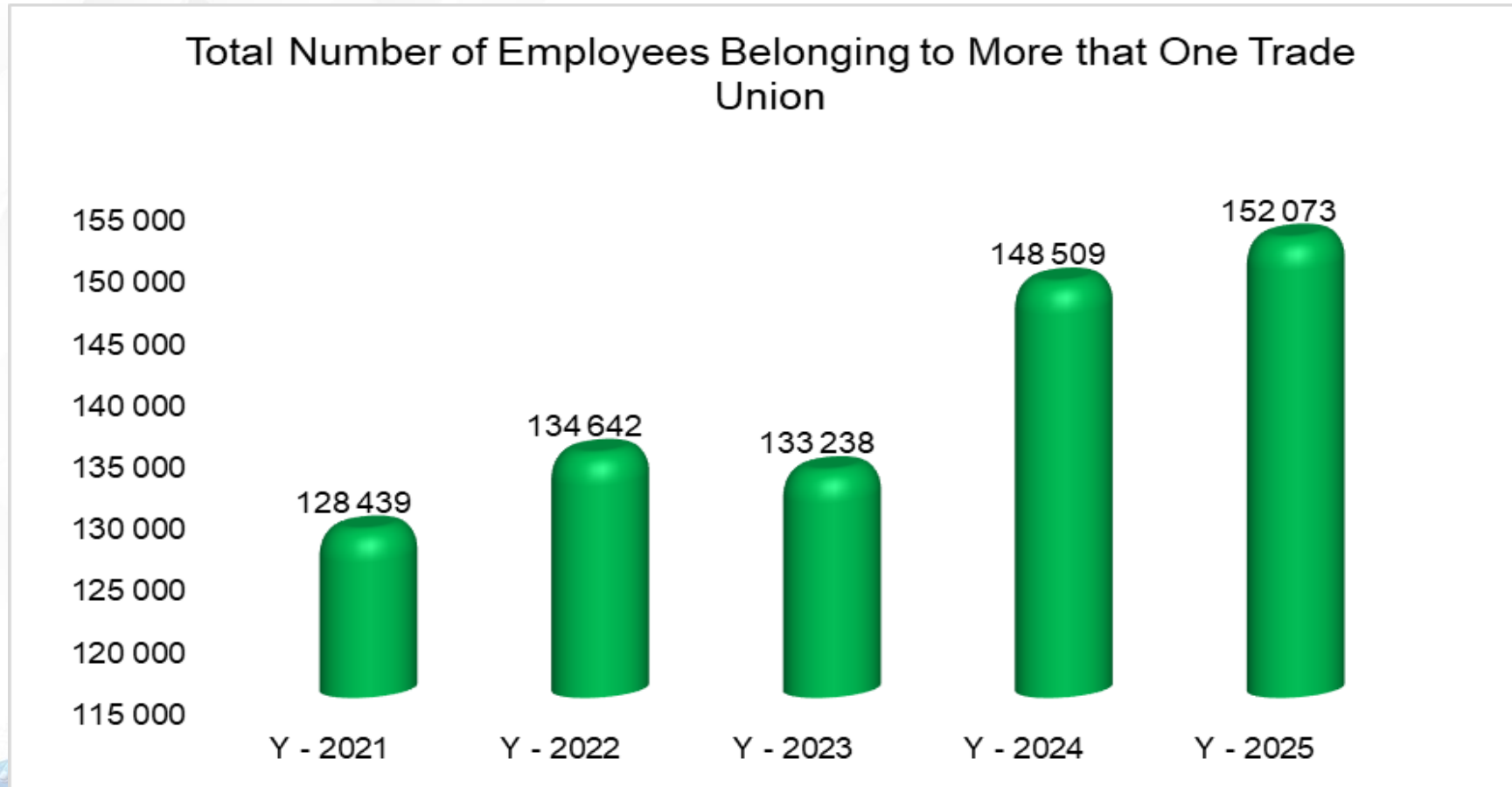
- UNIPSAWU's decline from 652 to 287 members represents a loss of organisational capacity that raises questions about sustainability (membership of Council terminated).
- PAWUSA's steady decline from over 6,500 members to below 4,500 tells a similar story of gradual but insistent weakening.
- The data reveals several recurring patterns that transcend individual union circumstances. Most notably, seasonal fluctuations appear to be a structural feature, with the fourth quarter of each financial year consistently marking a low point for the majority of organisations.

Trade Union Membership In Numbers



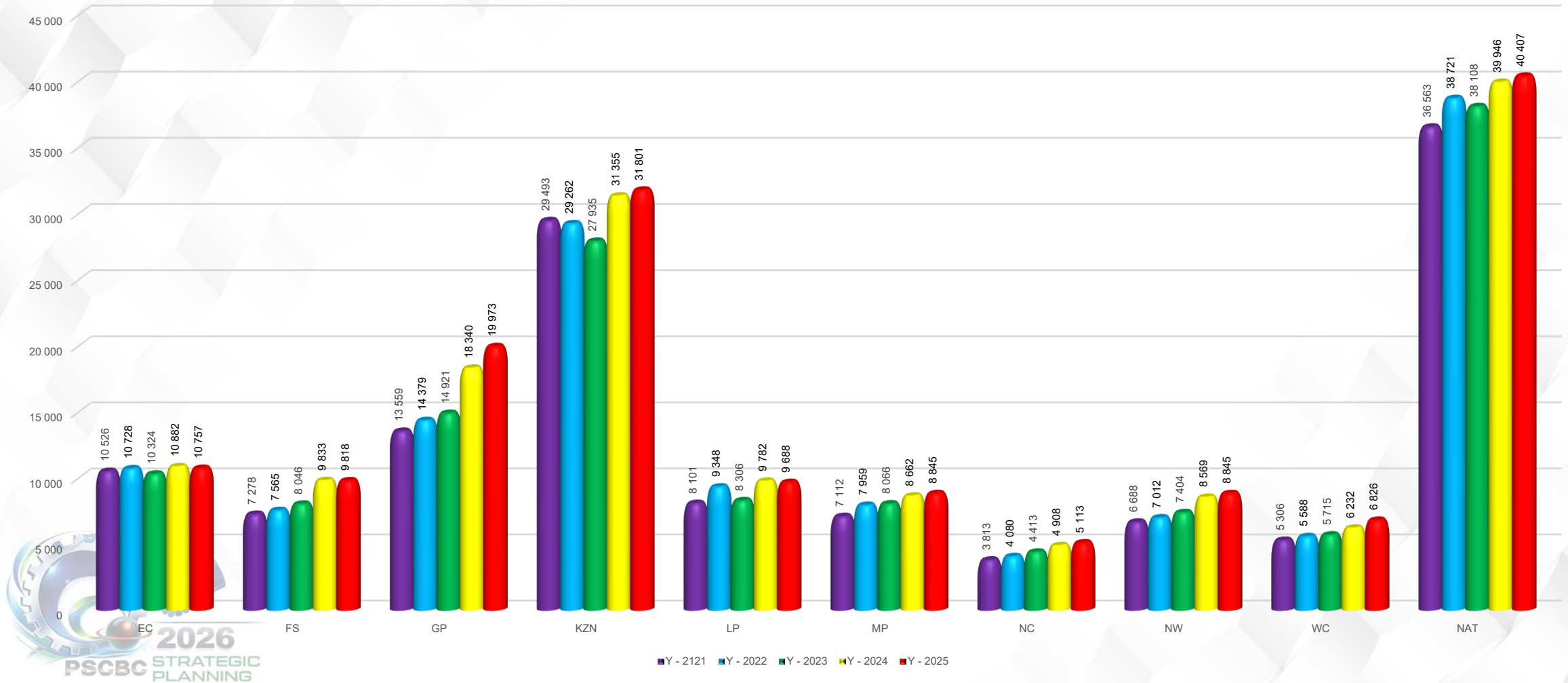
- SA Agricultural Plantation and Allied Workers Union (SAAPAWU)
- Society of State Advocates & Prosecutors of South Africa (SSAPSA)
- South African Correctional Services Workers Union (SACOSWU)

Trade Union Membership In Numbers

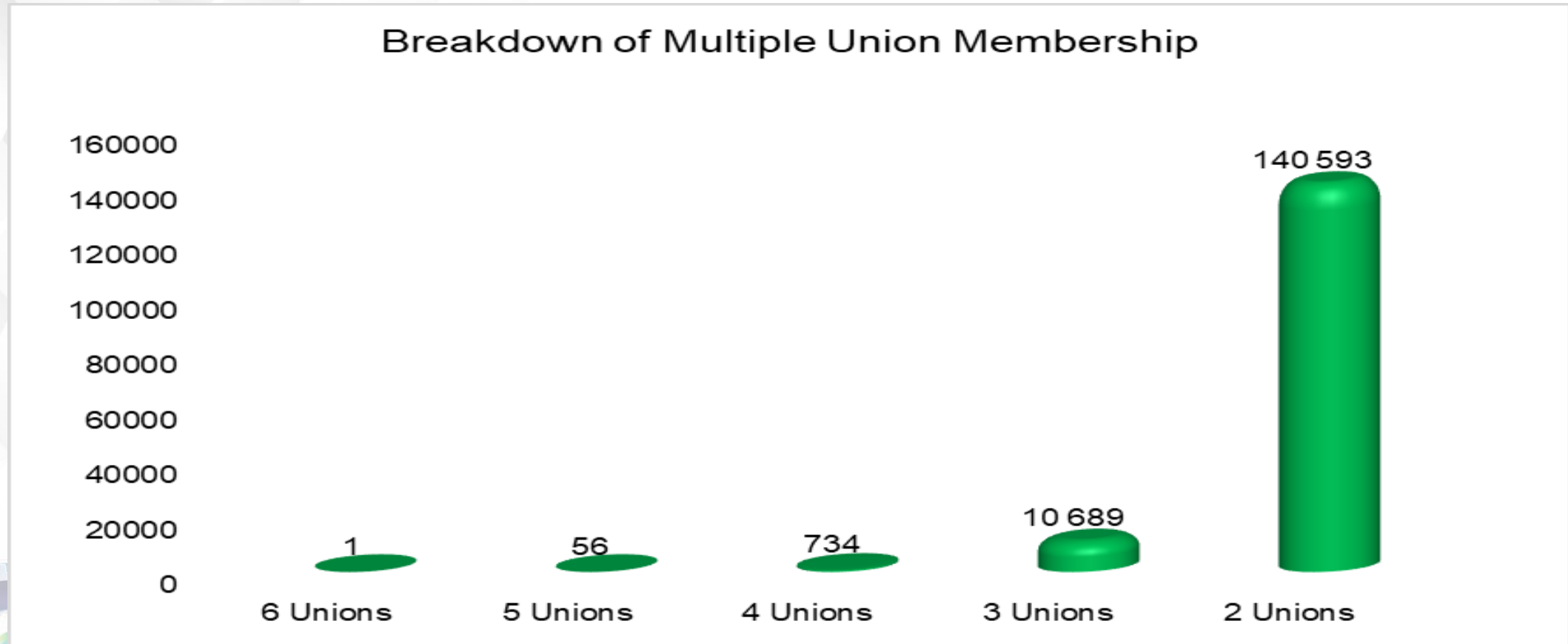


Trade Union Membership In Numbers

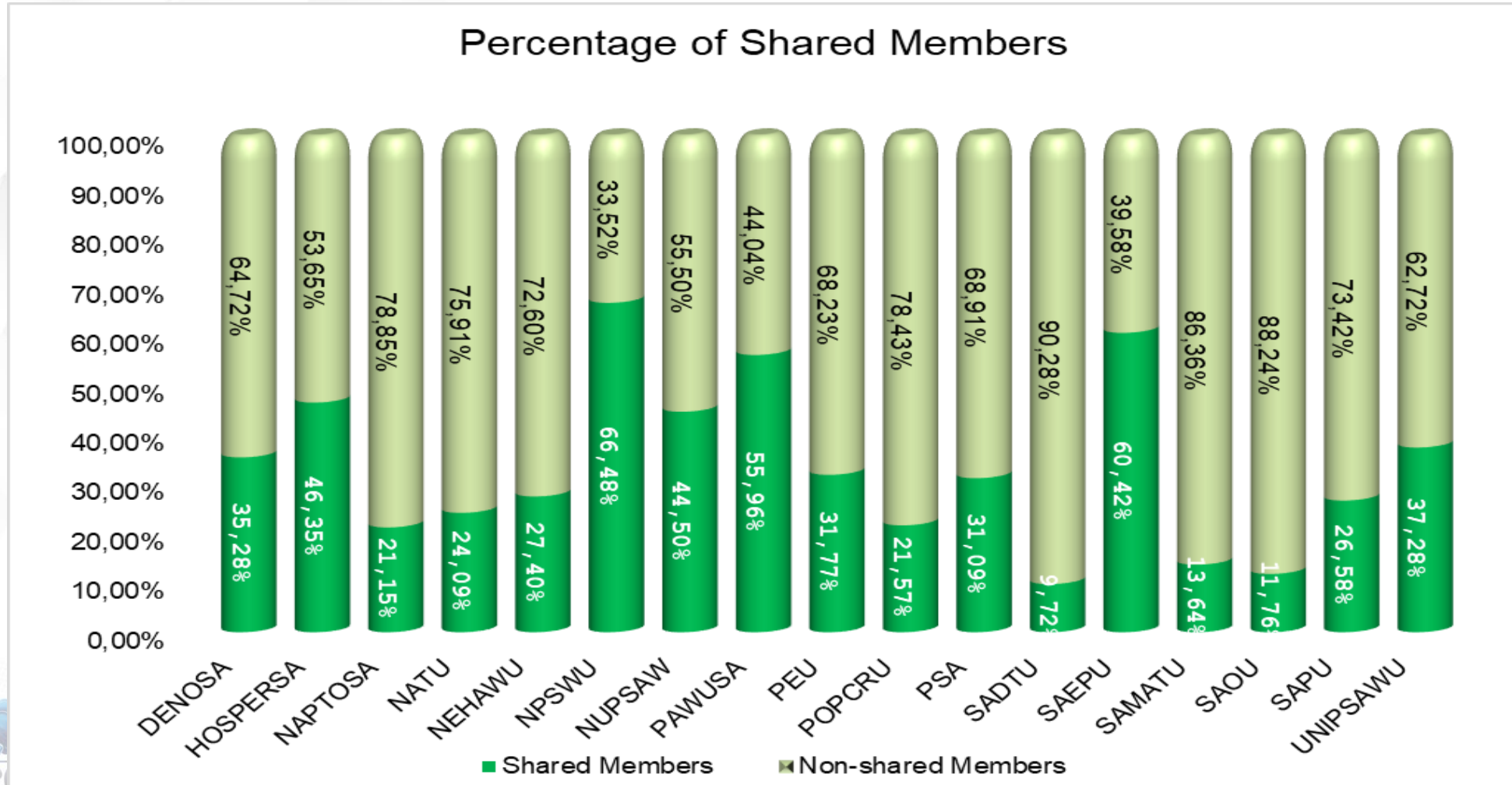
Number of People with Multiple Trade Union Membership Broken Down By Province



Trade Union Membership In Numbers



Trade Union Membership In Numbers



Collective Bargaining in an Essential Services Context

- The Essential Services Committee issued a determination that requires of Parties to the PSCBC to enter into Minimum Service Agreements within workplaces/ occupational groupings that is designated as Essential Services;
- The LRA section 72 (9) regulates that a MSA/ MSD means the minimum number of employees in a designated essential service who may not strike in order to ensure life, personal safety or health of the whole or part of the population is not endangered.

Collective Bargaining in an Essential Services Context

- The LRA section 74 regulates how disputes in essential services must be dealt with;
- Any party may refer the matter to the Council for Conciliation and subsequently for Arbitration if the matter is not resolved;
- Section 74 (5) requires an award made in such dispute that has a financial implication for the State, must be referred to Parliament for ratification;
- If no resolution is passed, the matter is referred back to the Commission for Conciliation and Arbitration.

Collective Bargaining- Interest Based Approach

Traditional Bargaining	Interest-Based Bargaining
Adversarial	Collaborative
Fixed demands	Flexible solutions
Win–lose mindset	Win–win mindset
Limited information sharing	Greater transparency

Collective Bargaining- Interest Based Approach

Benefits of Interest-Based Bargaining

- Strengthens trust between parties
- Reduces industrial conflict
- Encourages innovation in agreements
- Promotes sustainable labour relations
- Enhances long-term institutional stability



Collective Bargaining Focus Areas

- Reinforcing the independence and integrity of bargaining processes;
- Ensure the protection of the right to strike and proportionality within the essential services framework;
- Develop strategies for fostering a more collaborative and interest-based approach to collective bargaining
- Strengthening trust and cooperation between the Employer and Labour Parties.



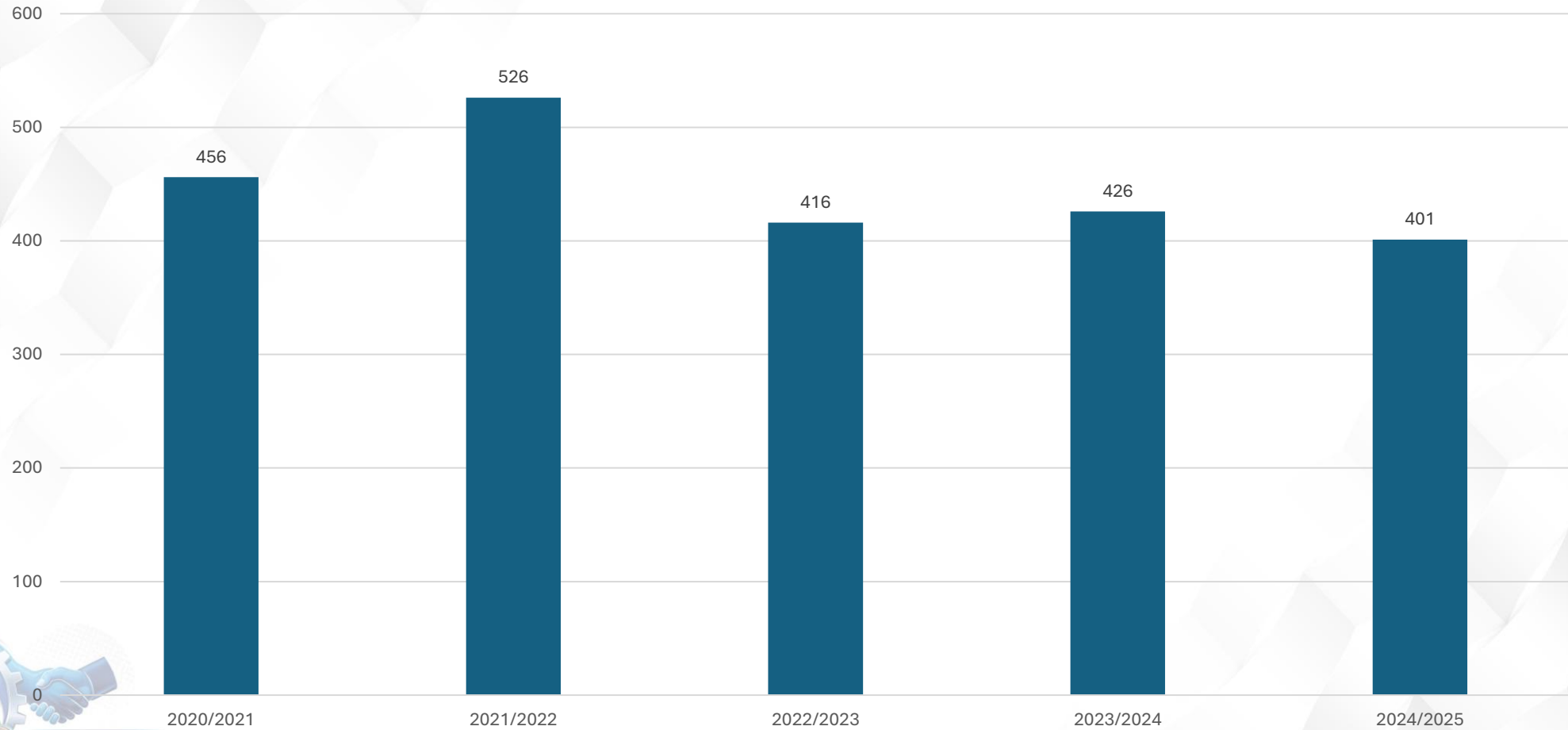
Collective Bargaining Focus Areas

- Consider the changing demographics of the Public service workforce inclusive of ageing workforce, skills gap and diversity;
- Strengthen integrity of membership determination process and reliability of membership database;
- Develop skills programs that will build capacity amongst negotiators within the PSCBC;
- Strengthen Sectoral Bargaining Interfaces



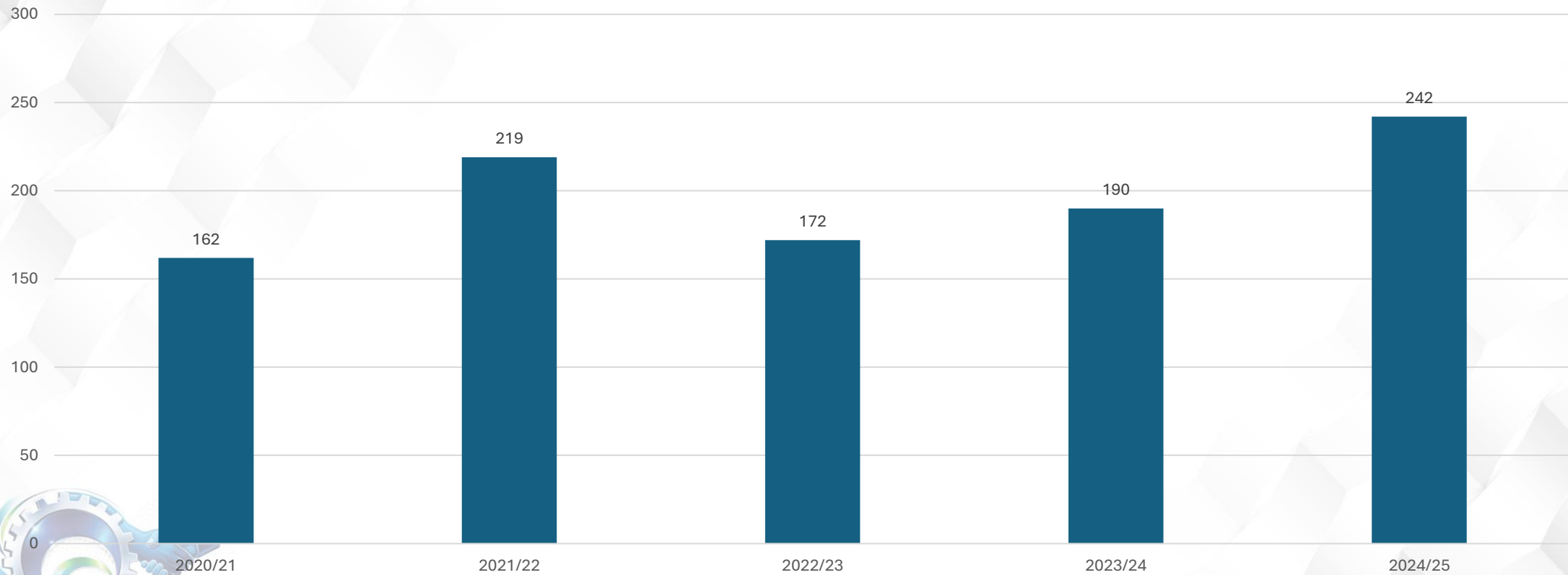
Dispute Resolution

Total number of referrals received per year



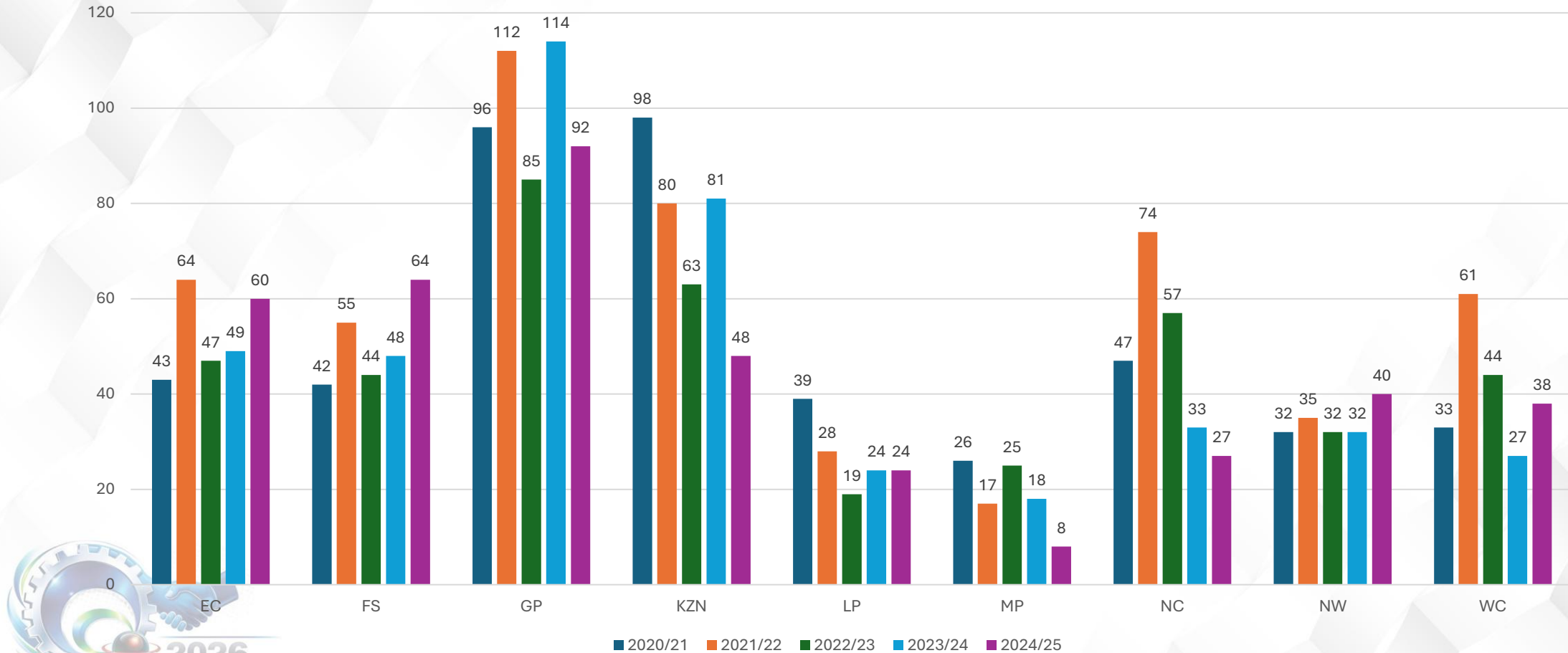
Dispute Resolution

Referrals received out of Jurisdiction



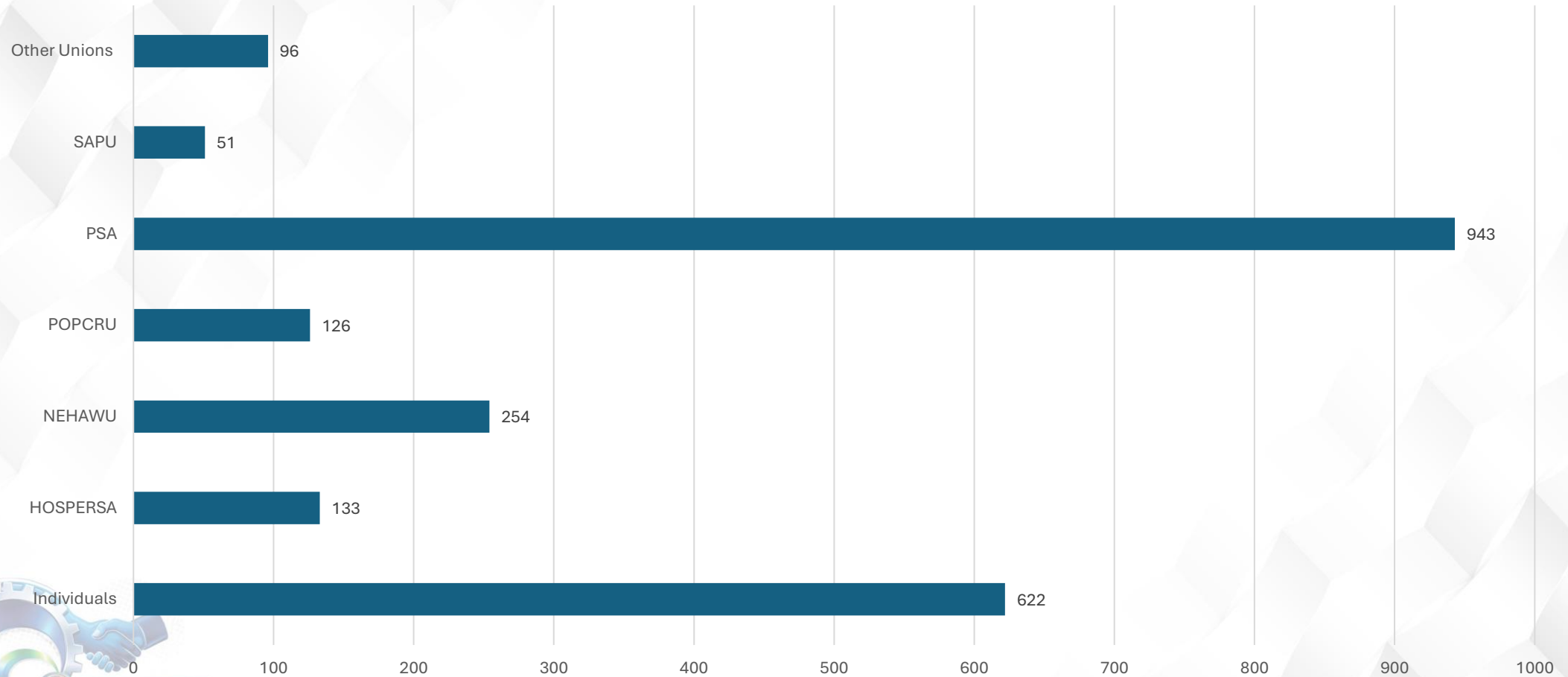
Dispute Resolution

A breakdown of referrals recieved by province per year



Dispute Resolution

Referrals received by individuals/trade unions



Dispute Resolution

Introduction of PSCBC Portal:

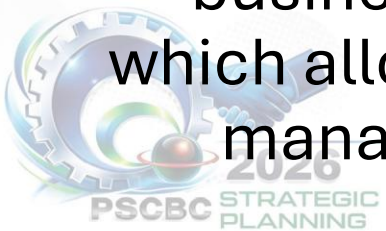
The Council has in this period successfully launched two online platforms –

the Portal to Parties and

the e-Referral form

To enhance access to dispute resolution processes and to align with technological advancements.

The PSCBC Portal is an advancement to the Council's automated business management systems. The Portal extends to functions which allow panellists and parties to connect to the internal business management system and interact with processes in real-time.



Dispute Resolution – Focus Areas

- Re-educate and re-train parties on the use and benefits of the PSCBC Portal
- Develop a comprehensive training program that encompasses both theoretical knowledge and practical skills.
- Enhancing the enforcement procedure as dispute prevention mechanism.
- Exploring further innovations such as digital case management and online mediation.





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THANK YOU!!



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